



EMPLOYMENT TRIBUNALS

Claimant: Mr M Burke

Respondent: Magna Exteriors (Liverpool) Ltd

Heard at: Liverpool Employment Tribunal

On: 16-19 June 2025

Before: Employment Judge Barker
Mr D Williamson
Mr S Husain

Appearances

For the claimant: Ms Morgan, counsel

For the respondent: Mr Pincott, counsel

JUDGMENT

1. The complaint of unfair dismissal is well-founded. The claimant was unfairly dismissed.
2. The following complaint of unfavourable treatment because of something arising in consequence of disability (section 15 Equality Act 2010) is well-founded and succeeds: The claimant was not consulted about remaining employed, when the decision to keep the respondent's paint line open was made.
3. The remaining complaint of unfavourable treatment because of something arising in consequence of disability is not well-founded and is dismissed.

Approved by EJ Barker

20 June 2025

Judgment sent to the parties on:

24 July 2025

For the Tribunal:

Reasons for the judgment having been given orally at the hearing, written reasons will not be provided

unless a request was made by either party at the hearing or a written request is presented by either party within 14 days of the sending of this written record of the decision.

Public access to employment tribunal decisions

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Recording and Transcription

Please note that if a Tribunal hearing has been recorded you may request a transcript of the recording, for which a charge may be payable. If a transcript is produced it will not include any oral judgment or reasons given at the hearing. The transcript will not be checked, approved or verified by a judge. There is more information in the joint Presidential Practice Direction on the Recording and Transcription of Hearings, and accompanying Guidance, which can be found here:

<https://www.judiciary.uk/guidance-and-resources/employment-rules-and-legislation-practice-directions/>